

Muslim Commission Act, 2017

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Muslim Commission Act, 2074

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Amending Act

1. Act Amending Some Nepal Acts, 2075 2075.11.19

Act Number 31 of the year 2074

An Act Made to Provide for the Functions, Duties, Powers, and Procedures of the Muslim Commission

Preamble: Whereas, it is desirable to make necessary provisions regarding the Muslim Commission for the identification of the history and culture of the Muslim community, the protection and promotion of their rights and interests, and the empowerment of the Muslim community,

The Legislature-Parliament, in accordance with Sub-article (1) of Article 296 of the Constitution of Nepal, has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Muslim Commission Act, 2074".
- (2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
 - (a) "Chairperson" means the Chairperson of the Commission, and this term also includes the Acting Chairperson.
 - (b) "Commission" means the Muslim Commission constituted pursuant to Article 264 of the Constitution.
 - (c) "Prescribed" or "as prescribed" means prescribed or as prescribed in the Rules made under this Act.
 - (d) "Muslim" means the community defined by the Government of Nepal upon the recommendation of the Muslim Commission.
 - (e) "Member" means a Member of the Commission, and this term also includes the Chairperson.
 - (f) "Constitution" means the Constitution of Nepal. Chapter-2

Qualifications of Chairperson and Members and Circumstances of Vacancy

3. Qualifications of Chairperson and Members: The following person shall be qualified to be appointed to the position of Chairperson or Member of the Commission:-
 - (a) A person from the Muslim community who has protected and promoted the rights and interests of the Muslim community for at least ten years, contributed to the social sector, or made a significant contribution to the empowerment or development of the Muslim community or the field of human rights,
 - (b) Has obtained a Bachelor's Degree from a recognized university,
 - (c) Is not a member of any political party at the time of appointment,

- (d) Has completed forty-five years of age,
- (e) Is of high moral character. 4.

Circumstances of Vacancy: The position of the Chairperson or a Member of the Commission shall become vacant in any of the following circumstances:- (a) If he/she submits a written resignation to the President, (b) If his/her age reaches sixty-five years, (c) Upon the expiry of the term of office as per Sub-article (3) of Article 264 of the Constitution, (d) If an impeachment motion is passed against him/her pursuant to Article 101 of the Constitution, (e) If the President removes him/her from office based on the recommendation of the Constitutional Council, stating that he/she is unable to remain in service and perform duties due to physical or mental illness, (f) Upon his/her death. 5. Ineligibility for Reappointment: The Chairperson or a Member appointed to the Commission shall not be eligible for reappointment. Provided that a Member may be appointed to the position of Chairperson, and if such a Member is appointed as Chairperson, the period served as a Member shall also be added while calculating his/her term of office. 6. Ineligibility for Other Government Service: A person who has been a Chairperson or Member shall not be eligible for appointment to any other government service. Provided that nothing written in this section shall be deemed to prevent such a person from being appointed and working in any political position or any position responsible for researching, inquiring, or investigating a subject or studying or exploring a subject and submitting opinions, remarks, or recommendations. Chapter-3 Functions, Duties, and Powers of the Commission 7.

Functions, Duties, and Powers of the Commission: The functions, duties, and powers of the Commission shall be as follows:- (a) To study the overall situation of the Muslim community and recommend to the Government of Nepal on matters of policy, legal, and institutional reforms needed in this regard, (b) To formulate national policies and programs for the protection and promotion of the rights and interests of the Muslim community and the empowerment of such community and recommend to the Government of Nepal for implementation, (c) To study and research whether the provisions made regarding the protection and promotion of the rights and interests of the Muslim community and the empowerment of such community have been effectively implemented and advise the Government of Nepal on the steps to be taken for effective implementation, (d) To advise the Government of Nepal on improvements to be made to the existing policy, legal, and institutional arrangements regarding the protection and promotion of the rights and interests of the Muslim community and the empowerment of such community, (e) To review, monitor, and evaluate the implementation of policies and programs related to the Muslim community, (f) To monitor or cause to be monitored the implementation of recommendations made or suggestions given by the Commission, (g) To formulate special programs for the development and empowerment of persons who are economically or socially backward within the Muslim community and recommend to the Government of Nepal for implementation, (h) To study and research the language, script, culture, history, tradition, literature, and art of the Muslim community and formulate programs for the protection and development of such language, script, culture, history, tradition, literature, and art and recommend to the Government of Nepal, (i) To conduct awareness-raising programs for the protection and promotion of the rights and interests of the Muslim community and the empowerment of such community, (j) To formulate programs to end all forms of exploitation and for the empowerment of the Muslim community and recommend to the Government of Nepal, (k) To monitor whether international treaties and agreements to which Nepal is a party concerning the Muslim community are implemented, and Amended by the Act Amending Some Nepal Acts, 2075. make necessary recommendations or give suggestions to the Government of Nepal for implementation, (l) To collect complaints against persons or institutions violating the rights of the Muslim community and recommend to the concerned body for investigation and inquiry, (m) To conduct detailed study and research regarding the identity of the Muslim community and recommend to the Government of Nepal to list surnames, (n) To

establish a living museum for the protection and promotion of the tangible and intangible culture of the Muslim community, conduct research to find origin sites, formulate policies and programs for the protection and promotion of such archaeological and historical structures, objects, and sites, and recommend to the Government of Nepal for implementation, (o) To review, monitor, and evaluate awareness-raising programs conducted by the Government of Nepal and other associations and institutions for the protection, promotion, and empowerment of the rights and interests of the Muslim community, (p) To study and research the backward condition of the Muslim community and its current educational, political, social, and economic deprivation and advise the Government of Nepal for the development of the community, (q) To formulate and implement a code of conduct for the Chairperson, Members, and employees of the Commission, (r) To approve the annual plans and programs of the Commission.

8. Power to Seek Opinions and Consultations: The Commission may coordinate, consult, or seek opinions from other constitutional bodies, government offices, or public institutions regarding its work and proceedings.

9. Power to Engage the Services of Experts: If any work required to be performed pursuant to this Act and prevailing federal law cannot be performed by the personnel working in the Commission, the Commission may, stating the reasons therefor, engage the services of an expert pursuant to the prevailing federal law.

10. Power to Form a Committee or Task Force: (1) For the purpose of performing any specific nature of work related to the Commission, the Commission may, specifying the procedure, form a committee or task force.

(2) The working conditions or scope of work of the committee or task force formed pursuant to Sub-section (1) shall be as determined by the Commission at the time of forming such committee or task force.

(3) While forming a committee or task force pursuant to Sub-section (1), representation shall be ensured on the basis of the principle of proportional inclusion as provided for in the Constitution.

11. Power to Coordinate and Cooperate: The Commission may coordinate and cooperate as necessary with government bodies or public institutions.

Chapter-4 Conduct of Business of the Commission

12. Office of the Commission: (1) The office of the Commission shall be located in the Kathmandu Valley for the conduct of its business.

(2) The Commission may establish offices at the provincial level as well, as necessary.

13. Meeting of the Commission: (1) The work required to be performed by the Commission pursuant to this Act shall be done by the decision of the meeting of the Commission.

(2) A meeting of the Commission shall be held on such date, time, and place as specified by the Chairperson as required.

(3) The Secretary of the Commission shall, specifying the date, time, and place for the meeting, send a notice including the agenda for discussion at the meeting to all Members generally forty-eight hours prior to the meeting time.

(4) If a Member wishes to discuss any subject in addition to the subjects mentioned in the agenda of the meeting pursuant to Sub-section (3), such Member shall submit a notice stating the subject and reason for wishing to discuss to the Secretary of the Commission at least twenty-four hours before the meeting.

Upon receipt of such notice, the Secretary of the Commission shall inform all Members thereof forthwith, and such subject shall be deemed to be included in the agenda of the meeting of the Commission.

(5) Notwithstanding anything contained in Sub-sections (3) and (4), with the consent of all Members present at the meeting of the Commission, discussion and decision may also be held on subjects not included in the agenda.

(6) The presence of more than fifty percent of the Members currently holding office in the Commission shall

be deemed to constitute a quorum for the meeting of the Commission.

(7) The meeting of the Commission shall be presided over by the Chairperson.

(8) Decisions of the Commission shall be made by a majority of votes, and in case of a tie, the Chairperson shall cast the deciding vote.

(9) The Secretary of the Commission shall prepare the record of the decisions of the Commission and keep it signed by the Chairperson and Members. Amended by the Act Amending Some Nepal Acts, 2075. (10) An officer of the Nepal Civil Service of the Special Class shall serve as the Secretary of the Commission. Until such employee is appointed, the senior-most employee of the Commission shall serve as the Secretary of the Commission.

(11) Other procedures relating to the meeting of the Commission shall be as determined by the Commission.

14. Prohibition from Participating in Decision-Making Process in Case of Conflict of Interest: If a Member of the Commission has an interest, concern, or stake in any subject under consideration by the Commission, or if his/her close relative is directly affected, such Member shall give prior notice thereof to the Commission and shall not participate in the decision-making process of the Commission concerning such subject. 15. Division

of Work: The division of work between the Chairperson and Members shall be as specified by the Commission.

16. Performance of Duties as Acting: If the position of the Chairperson falls vacant for any reason, Amended by the Act Amending Some Nepal Acts, 2075. if he/she is unable to perform the functions of his/her office pursuant to Sub-article (6) of Article 101 of the Constitution, if he/she goes on a foreign visit, or if he/she is on leave for more than seven days, the senior-most Member of the Commission shall serve as the Acting Chairperson of the Commission. 17. Proceedings of Commission Not To Be Invalidated: The proceedings of the Commission shall not be invalidated merely by reason of the vacancy of a Member's position. Omitted by the Act Amending Some Nepal Acts, 2075. Chapter-5

Miscellaneous

18.

Organizational Structure and Employees of the Commission: (1) The organizational structure and staff strength of the Commission shall be as approved by the Government of Nepal. (2) Employees required for the conduct of the business of the Commission shall be provided by the Government of Nepal. 19.

Observance of Official Dignity and Conduct: (1) The Chairperson and Members of the Commission shall observe official dignity as follows:- (a) To perform their official duties independently, impartially, and honestly for the protection and promotion of the rights and interests of the Muslim community and the empowerment of the Muslim community, (b) Not to do any act that may disturb the relationship between various castes, communities, and sects. (2) The Chairperson and Members of the Commission shall observe official conduct as per this Act or prevailing federal law. 20. Duty to Cooperate in Proceedings: It shall be the duty of any

body or office-bearer to provide such assistance when the Commission requests for assistance from them in the course of performing its work. 21. Power to Send Written Communication for Implementation: If any body or office-bearer fails to provide necessary assistance to the Commission, the Commission may send a written communication to the controlling body or officer of such body or officer for assistance. 22. Annual Report: (1)

The Commission shall submit an annual report of its work and proceedings to the President within three months from the date of expiry of the fiscal year. (2) In addition to other matters, the annual report pursuant to Sub-section (1) shall also include the following matters:- (a) Details of the implementation of the annual program of the Commission and the cost incurred, (b) Details of recommendations and suggestions provided by the Commission to the Government of Nepal or any other body, (c) The status of implementation of the recommendations and suggestions pursuant to Clause (b), (d) Details of the financial and physical resources

of the Commission and their utilization, (e) Details of other work and proceedings carried out concerning the performance of the duties required to be fulfilled by the Commission pursuant to this Act. 23. Liaison with the Government of Nepal: While liaising with the Government of Nepal, the Commission shall do so through the Ministry of Federal Affairs and General Administration. 24.

Delegation of Powers: The Commission may, as necessary, delegate any of the powers conferred upon it by this Act, subject to prescribed conditions, to the Chairperson, Member, Government of Nepal, Provincial Government, any body, or any officer or employee of the Local Government for the exercise and performance thereof. Repealed by the Act Amending Some Nepal Acts, 2075. 25. 26. Protection of Actions Done in Good Faith: No legal action shall be instituted against any office-bearer, employee, or any person deployed by the Commission for any act done in good faith pursuant to this Act or the Rules made under this Act. 27. Power to Make Rules: (1) The Commission may make necessary Rules for the implementation of this Act. (2) If the Rules to be made pursuant to Sub-section (1) include matters that impose a financial burden or liability on the Government of Nepal, the Commission shall obtain the consent of the Government of Nepal, Ministry of Finance. (3) Rules made by the Commission pursuant to Sub-section (1) shall come into force from the date of publication in the Nepal Gazette. 28. Power to Make Directives: Subject to this Act and the Rules made under this Act, the Commission may make necessary Directives for the regular conduct or causing the conduct of the work to be performed by it. 29. Repeal and Saving: (1) The National Muslim Commission formed pursuant to the notice published in the Nepal Gazette on Jestha 8, 2069 is hereby dissolved. (2) All acts and proceedings performed by the Commission referred to in Sub-section (1) shall be deemed to have been performed under this Act. (3) The office-bearers holding office in the National Muslim Commission pursuant to Sub-section (1) at the time this Act comes into force shall automatically vacate their offices after this Act comes into force. Repealed by the Act Amending Some Nepal Acts, 2075. Schedule